

26STCV05055 26STCV05055

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-08-24

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Case Number: 26STCV05055 Hearing Date: August 24, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Joseph Rose

;

Plaintiff,

vs.

Slater Slater and Schulman,

LLP

, et al.,

Defendants.

Case No.:

26STCV05055

Hearing Date:

August 24, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

MOTION
TO DISMISS

MOVING PARTY: Defendants James W. Lewis, Andrew L.
Chung, and Slater Slater and Schulman, LLP

RESPONDING
PARTY: Plaintiff Joseph Rose

Motion to Dismiss

The court considered the moving
papers filed in connection with this motion. The court did not consider the
opposition papers filed by plaintiff Joseph Rose in connection with this motion
because there is no proof of service of those papers on the moving party.

REQUEST
FOR JUDICIAL NOTICE

The court denies the requests for
judicial notice accompanying the motion as immaterial to the court's ruling. (Gbur
v. Cohen (1979) 93 Cal.App.3d 296, 301 ("[J]udicial notice . . . is always
confined to those matters which are relevant to the issue at hand."].)

DISCUSSION

Defendants James
W. Lewis, Andrew L. Chung, and Slater Slater and Schulman, LLP ("Defendants")
move to dismiss this action filed by plaintiff Joseph Rose ("Plaintiff") on the
grounds of inconvenient forum.

The court denies
the motion as a misplaced challenge to the merits of the pleadings. (Code Civ.
Proc., §§ 418.10, 430.10 subds. (c), (e).) Defendants contend that this action
is improper because Plaintiff filed a separate action in the United States
District Court for the Central District of California, in which he alleged
identical claims that have been dismissed, and appeal remains pending. (Motion
p. 1:8-17.) This is an argument for either issue or claim preclusion, which
goes to the failure to state facts sufficient to constitute a claim or,
alternatively, an argument that there is another action pending. (Code Civ.
Proc., § 430.10, subds. (c), (e).) This is not an argument that the Superior
Court for the County of Los Angeles is an inconvenient forum. (Code Civ.
Proc., § 418.10, subd. (a); Fox Factory, Inc. v. Superior Court (2017)
11 Cal.App.5th 197, 203 [test for evaluating issue of inconvenient forum].)

ORDER

The court DENIES
defendants James W. Lewis, Andrew L. Chung, and Slater Slater and Schulman,
LLP's motion to dismiss.

Defendants James
W. Lewis, Andrew L. Chung, and Slater Slater and Schulman, LLP have made a
general appearance as of the date of this order.

The court orders defendants
James W. Lewis, Andrew L. Chung, and Slater Slater and Schulman, LLP to give
notice of this ruling.

IT IS SO ORDERED.

DATED: August 24, 2026

Robert B. Broadbelt III

Judge of the Superior Court